



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

Research and
Special Programs
Administration

DEC 16 2004

DOT-E 13565
(FIRST REVISION)

EXPIRATION DATE: November 30, 2006

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: H.C. Starck
Newton, MA
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the one-way transportation in commerce of certain non-DOT specification cylinders containing sodium. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.211 in that the non-DOT specification containers are not authorized therein.
5. BASIS: This exemption is based on the application of H.C. Starck dated October 21, 2004, submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/Hazardous Materials Description	Hazard Class/ Division	Identification Number	Packing Group
Sodium	Division 4.3	UN1428	I

7. SAFETY CONTROL MEASURES: PACKAGING - Prescribed packaging is an ASME "U" stamped stainless steel pressure vessel with a maximum allowable working pressure of 150 psig. The pressure vessel must conform with Alloy Engineering Company Drawing 15804, Rev. 0, dated October 25, 2000, on file with the Office of Hazardous Materials Exemptions and Approvals.
8. SPECIAL PROVISIONS:
- a. The pressure vessel authorized by this exemption must be shipped in a strong outside packaging which will provide protection during transportation.
 - b. The pressure vessel contains a maximum of 150 pounds sodium which must be padded with a maximum 0.33 psi Argon gas or other inert gas during transportation.
 - c. The vessel authorized by this exemption must be shipped in compliance with the requirements of § 177.838.
 - d. Transportation is authorized only from H.C. Starck's site in Newton, MA to the cleaning facility in East Liverpool, OH and is authorized only until clean up from the shutdown of the manufacturing process is complete.
 - e. MARKING - In addition to the requirements of Part 172, the packaging must be marked "DOT-E 13565".
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

DEC 16 2004

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

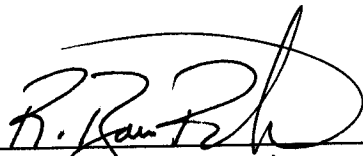
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this exemption must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



fe Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

DEC 16 2004

(DATE)

DEC 16 2004

Continuation of DOT-E 13565 (1st Rev.)

Page 4

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO:dl/Toughiry